

danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it).” (*Osborn, supra*, 224 Cal.App.3d at p. 122, 273 Cal.Rptr. 457, italics omitted.) In other words, while the obviousness of the condition and its dangerousness may obviate the landowner’s duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition. *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal. App. 5th 438, 447. Here, the City’s Separate Statement of Undisputed Facts and Supporting Evidence states: “All pertinent facts relative to this issue are already stated and referenced above.” This is inadequate and does not comply with California Rule of Court Rule 3.1350(d). Nonetheless, to the extent the City is relying on its argument and supporting evidence that Plaintiff was aware of the condition, and did not use due care in failing to navigate around it, the Court finds the City has not met its burden. The City has presented evidence that Plaintiff was familiar with the defect and had previously made a point to avoid it on her walk. (Decl. CPB Ex. 2.) Plaintiff has presented evidence that the sidewalk is the only pedestrian outlet. (Depo Colburn.) The only way to avoid the sidewalk is to cross a street without a crosswalk, walk in the street around cars, or walk on the grass. (Depo. Colburn.) There were multiple defects within steps of one another. (Depo. Colburn.) Here, there are triable issues of material fact with respect to whether the condition created a foreseeable risk, and whether a reasonable person may nevertheless choose to encounter it due to necessity or other circumstances.

Defendant’s Motion for Summary Judgment is **DENIED**. Plaintiff has lodged a proposed order which will be executed.

COLBURN VS. CITY OF REDDING, ET AL.

Case Number: 23CV-0202762

Tentative Ruling on Motion for Summary Judgment: This is a personal injury action, brought by Plaintiff Yvonne Colburn. Plaintiff alleges she tripped and fell on a city sidewalk on July 12, 2022, and sustained injuries. Her Amended Complaint alleges one cause of action: premises liability, for a dangerous condition on public property against Defendant the City of Redding (“City”). The City has also filed a Cross-Complaint for indemnity and equitable contribution against Linda Olson, as Trustee for the Olson Family Trust (“Olson”). Olson moves for summary judgment. Plaintiff opposes the motion.

Standing: In the Reply, Olson raises the issue of Plaintiff’s standing to oppose the Motion. Olson suggests that the Motion is supposed to be understood as against the City’s Cross-Complaint for indemnity. The Court, and apparently also the Plaintiff and the City, did not understand the Motion to be directed to the City’s Cross-Complaint. The City has not filed an opposition. The Motion does not address either of the City’s Causes of Action against Olson. The Motion is fully directed to Plaintiff’s claims for premises liability. The scope of Defendants’ initial burden is defined by the pleadings. *See 580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18. Here, Olson addresses only the Cause of Action of Plaintiff’s Amended Complaint. Further, under summary judgment law, any party to an action, whether plaintiff or defendant, may move the court for summary judgment in his favor on a cause of action (i.e., claim) or defense. Likewise, any adverse party may oppose the motion, and, where appropriate, must present evidence including affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice must or may be taken. An adverse party who chooses to oppose the motion must be allowed a reasonable opportunity to do so. *Aguilar v. Atl. Richfield Co.* (2001) 25 Cal. 4th 826, 843 (internal citations omitted). Therefore, the Court finds Plaintiff has standing to oppose the Motion and will proceed to the merits.

Request for Judicial Notice: Olson requests the Court take judicial notice of the Amended Complaint, and the Cross Complaint, pursuant to Evidence Code §§ 451-453. The request is granted.

Objections to Evidence: Plaintiff’s objections to evidence are overruled. Olson’s objections to evidence numbers 1-7, and 9 are overruled. Olson’s objections to evidence numbers 8 and 10 are sustained.

Additionally, the Court notes that Olson has filed a Supplemental Declaration and new evidence with the Reply brief, specifically excerpts from a deposition. Generally, new evidence may not be submitted with a Reply brief. “The due process aspect of the separate statement requirement is self-evident—to inform the opposing party of the evidence to be disputed to defeat the motion. (*United Community Church, supra*, 231 Cal.App.3d at p. 337, 282) Here, the evidence not only was omitted from the separate statement, it also was not filed until after assignee had responded to the issues raised in the separate statement. In considering this evidence, the court violated assignee's due process rights. Assignee was not informed what issues it was to meet in order to oppose the motion. Where a remedy as drastic as summary judgment is involved, due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail. (Cf. *Carabini v. Superior Court* (1994) 26 Cal.App.4th 239, 244, 31 Cal.Rptr.2d 520.)” *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal. App. 4th 308, 316. The Court will not consider this new evidence, as doing so would violate Plaintiff's due process rights.

Merits of Motion: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304.

Premises Liability for a Dangerous Condition of Public Property: “Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” Gov. Code § 835.

Defendant bears the burden of making a prima facie showing that there is no triable issue of material fact with respect to one of the elements set forth in Gov. Code § 835. Olson now moves for summary judgment on the grounds that: 1) the condition was open, obvious, and known to Plaintiff, and 2) the condition was trivial as a matter of law.

Open, Obvious, and Known Condition. Olson's first argument is that summary judgment is proper because the condition was open, obvious and admittedly known to Plaintiff. “Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no

further duty to remedy or warn of the condition.” (*Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393.) In that situation, owners and possessors of land are entitled to assume others will “perceive the obvious” and take action to avoid the dangerous condition. (*Haberlin v. Peninsula Celebration Assn.* (1957) 156 Cal.App.2d 404, 408, 319 P.2d 418.) An exception to this general rule exists when “it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it).” (*Osborn, supra*, 224 Cal.App.3d at p. 122, 273 Cal.Rptr. 457, italics omitted.) In other words, while the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition. *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal. App. 5th 438, 447. Here, Olson submits evidence that Chris Carmona measured the defect and found that it ranged from 2 inches at the left-most point he measured, down to negative ¼ inches at the right right-most point. (Decl. Carmona ¶¶ 4-8, Ex. B-F.) Plaintiff counters that the left point measured by the City was 3-4 inches away from the true left point of the defect, and that Mr. Carmona did not measure its maximum height, which exceeds 2 inches. (Decl. Carmona Ex. D, C.) Olson submits evidence that Plaintiff had already navigated around the subject condition on several occasions previously. (Decl. Kloeppel, Ex. A.) This fact is undisputed. Plaintiff provides evidence that Plaintiff was not used to the area, as she was startled by a dog and when her foot caught the defect. (Depo. Colburn.) Plaintiff also provides evidence that multiple other people have previously tripped over this defect. (Decl. Mattson ¶¶ 2, 4-5; Depo. Colburn.) Plaintiff provides additional evidence that this walkway was the only pedestrian outlet for the area and that there were multiple defects within steps of one another. (Colburn Depo.) Plaintiff here has established that there are triable issues of material fact with respect to whether a dangerous condition existed and whether it was foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition.

Trivial Defect Doctrine. Olson’s second argument is that there is no triable issue of material fact with respect to whether a dangerous condition existed, because the defect was trivial as a matter of law. Gov. Code § 830 provides that “dangerous condition” means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used. Gov. Code § 830.2 provides that a condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used. Following *Huckey v. City of Temecula*, 37 Cal.App.5th 1092 (2019), the court's analysis of whether a walkway defect is trivial involves as a matter of law two essential steps. “First, the court reviews evidence regarding type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors [bearing on whether the defect presented a substantial risk of injury]. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law” *Ibid.* Sidewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law. *Id.* at 1107. Regarding the type and size of the defect, Olson relies on the Declaration of Christian Carmona. Carmona measured the sidewalk panel at three points along its edge. He does not specify how he chose those points, or the measurement of their locations along the sidewalk edge. The estimated height in comparison to the next sidewalk panel varied from negative ¼ inch to 2 inches tall, at the points he chose to measure. (Decl. Carmona ¶¶ 6-8, Ex. A-C.) Carmona reviewed Plaintiff’s deposition and her mark where she alleges her foot hit the uplifted panel. Using that information, he estimates the size of the defect is approximately 1 7/8 inches – 1 11/16 inches at the point Plaintiff identified. (Decl. Carmona ¶ 9.) Carmona did not measure the maximum height of the defect. (Decl. Carmona Ex. C, D.) Carmona did not actually measure the height of the defect at the point where Plaintiff marked the photo. (Decl. Carmona ¶ 9.) Carmona did not provide any explanation for how he made his estimation of the height of the location where Plaintiff marked. Additionally, the photo Plaintiff marked is Exhibit F to the Decl. of Carmona. Exhibit F does not show the dots

Carmona says he used to take measurements. There is a triable issue of material fact with respect to the size of the defect. Cross-Defendant has not carried her burden to make a prima facie showing that the defect was trivial as a matter of law.

Cross-Defendant's Motion for Summary Judgment is **DENIED**. Plaintiff has lodged a proposed order which will be executed.

IN RE: CRENSHAW

Case Number: 24CV-0205679

Tentative Ruling on Petition for Change of Name: Petitioner Donald Cresswell Crenshaw seeks to change his name to Donald Cresswell Shearer III. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

FAUST VS. SUNFLOWER MANAGEMENT & OPERATIONS, LLC

Case Number: 24CV-0204258

Tentative Ruling on Motion to Be Relieved as Counsel: Adam Rose of Frontier Law Center moves to be relieved as counsel for Audrey Faust, individually and on behalf of all similarly situated individuals. The Court notes that while the class claims have been dismissed, there is still a cause of action brought under the Private Attorney Generals Act.

CRC Rule 3.1362 provides the procedural requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). In this matter, Plaintiff Audrey Faust was served at her last known address. Counsel was not able to confirm the validity of this address within the last 30 days. To obtain a current address, counsel mailed the motion return receipt requested, called Plaintiff's last known phone number, and emailed Plaintiff. There is no evidence that any other efforts have been made. There is no evidence of the contents of the phone or email communications. The Proof of Service filed on October 7, 2024 only reflects service by mail and it appears that the motion was not emailed to Plaintiff.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Counsel represents that, "Audrey Faust has now stopped communicating with Frontier Law Center altogether, making further representation infeasible." This would constitute a valid reason for counsel moving to withdraw.

Due to the lack of proper notice to Plaintiff and insufficient efforts to determine a current address, the motion is **DENIED** without prejudice. A proposed Order was provided but it cannot be modified to reflect the Court's ruling. Plaintiff's counsel is to prepare the Order.

The Court notes that default was entered against Defendant on September 25, 2024. The Mandatory Settlement Conference on December 16, 2024 and the Trial on January 7, 2025 are hereby **VACATED**. The matter will be on calendar on **Monday, December 23, 2024 at 9:00 a.m. in Department 63** for review regarding status of the case and status of counsel.